

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #12	CCRB Case #: 201609163	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 10/14/2016 10:58 PM	Location of Incident: § 87(2)(b) 70th Precinct stationhouse.		18 Mo. SOL 4/14/2018		Precinct: 70
Date/Time CV Reported Thu, 10/20/2016 11:30 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/02/2016 11:20 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Eric Gutierrez	03293	954903	070 PCT
2. POM Donald Barton	12248	942979	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Danny Karma	18756	958741	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Donald Barton	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Donald Barton searched the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Donald Barton	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Donald Barton searched the vehicle in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . POM Eric Gutierrez	Abuse: At the 70th Precinct stationhouse, Police Officer Eric Gutierrez threatened § 87(2)(b) with the use of force.	C . Unsubstantiated
D . POM Eric Gutierrez	Discourtesy: At the 70th Precinct stationhouse, Police Officer Eric Gutierrez spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . POM Eric Gutierrez	Off. Language: At the 70th Precinct stationhouse, Police Officer Eric Gutierrez made remarks to § 87(2)(b) based upon ethnicity.	E . Unsubstantiated

Case Summary

On October 20, 2016, § 87(2)(b) filed this complaint with IAB on behalf of himself and § 87(2)(b). On November 2, 2016, the complaint was received at the CCRB. On January 24, 2017, § 87(2)(b) provided a telephone statement, but was otherwise uncooperative.

On October 14, 2016, at approximately 10:58 p.m., § 87(2)(b) parked his 2003 Chevy Impala in a no-standing zone in front of his apartment located at § 87(2)(b) in Brooklyn. PO Donald Barton and PO Danny Karma, both from the 70th Precinct, approached the vehicle to issue a parking summons for being in a no-standing zone. Upon approaching the vehicle, PO Barton found § 87(2)(b) inside of the vehicle and asked for the documents for the vehicle. § 87(2)(b) approached § 87(2)(b) and PO Barton. § 87(2)(b) is the owner of a used car dealership and let § 87(2)(b) borrow the 2003 Chevy Impala. The car had a Delaware license plate that was placed in the rear windshield. PO Barton searched the vehicle (**Allegations A and B**). PO Barton exited the vehicle with a photocopied license plate and arrested § 87(2)(b), § 87(2)(b) and § 87(2)(b).

While § 87(2)(b) was in the holding cells of the 70th Precinct Stationhouse, he saw PO Eric Gutierrez, who previously arrested § 87(2)(b). PO Gutierrez said to another officer, “That’s the kid that I knocked out, he’s fucking Jewish,” “he’s a Jew that thinks he’s black,” and “You know I hate Jews” (**Allegation C and D**). PO Gutierrez then told § 87(2)(b) “We can do it again if you want” referencing the prior use of force (**Allegation E**).

§ 87(2)(b) and § 87(2)(b) were both arrested as a result of this incident. However, the District Attorney’s Office declined to prosecute. (**Board Review 14**)

There are no video recordings of this incident.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g).

Mediation, Civil and Criminal Histories

- This case was not mediation eligible as § 87(2)(b) had an open criminal case involving PO Gutierrez.
- On February 2, 2017, an inquiry was filed with the New York City Comptroller’s Office to locate a notice of claim for § 87(2)(b). § 87(2)(b) has not filed a notice of claim regarding this incident. (**Board Review 01**)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed two CCRB complaints including this one. § 87(2)(b) (Board Review 04)
- This is the first CCRB case to which § 87(2)(b) has been a party. (Board Review 05)
- PO Barton has been a member of the NYPD for ten years. PO Costello has no substantiated CCRB complaints. § 87(2)(g)
- PO Gutierrez has been a member of the NYPD for three years. PO Gutierrez has no substantiated CCRB complaints. § 87(2)(g)

Findings and Recommendations

Allegation A –Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Donald Barton searched the vehicle in which § 87(2)(b) was an occupant.

Allegation B –Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Donald Barton searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(g)

It is undisputed that PO Barton entered the vehicle. § 87(2)(g)

§ 87(2)(b) stated that § 87(2)(b) was borrowing a 2003 Chevy Impala that belonged to § 87(2)(b)'s used car dealership. The car was parked at § 87(2)(b) in front of § 87(2)(b)'s residence and had a Delaware Dealer license plate presented in the rear windshield of the vehicle. § 87(2)(b) was driving to § 87(2)(b)'s house to go out to dinner. Upon arriving at the scene, § 87(2)(b) found § 87(2)(b) interacting with PO Barton. § 87(2)(b) identified himself as the owner of the vehicle. PO Barton searched the entirety of the car, including the glove box, rear seats, trunk, and a laundry bag that was in the car. After searching the car, PO Barton found several photocopies of license plates in a folder belonging to § 87(2)(b). § 87(2)(b) was arrested § 87(2)(b) and § 87(2)(b) was arrested § 87(2)(b). (Board Review 07)

§ 87(2)(b) provided a phone statement regarding the incident. While working on the 2003 Chevy Impala, PO Barton approached the vehicle. § 87(2)(b)'s statement was § 87(2)(g) regarding the search of the vehicle, that the plate in the rear windshield was the legitimate plate, and the discovery of the photocopied license plate in a separate folder. § 87(2)(b) was ultimately uncooperative with the investigation. (Board Review 08)

PO Barton stated that he observed a vehicle with no license plate parked in a no-standing zone and approached the vehicle to issue a parking ticket. Upon approaching the vehicle, PO Barton found § 87(2)(b) seated inside the car and requested documents for the vehicle so that he could issue a parking summons. PO Barton asked § 87(2)(b) why there was no license plate on the vehicle and § 87(2)(b) pointed to a Delaware Dealer license plate located in the rear windshield of the car. PO Barton again requested the documents to issue a parking summons; however, § 87(2)(b) would not produce the documents. PO Barton did not suspect anything about the license plate and still intended to issue a parking summons. § 87(2)(b) arrived on the scene with the original, metal license plate, and identified himself as the owner of the car. PO Barton noticed that the number on the plate in § 87(2)(b)'s possession and the one in the rear windshield of the car had the same numbers. PO Barton suspected that the plate presented in the vehicle was a forged document. PO Barton opened the rear door of the vehicle and reached in and

grabbed the license plate which was located in the rear windshield of the vehicle. PO Barton did not search the car further. According to PO Barton and the arrest reports, PO Barton arrested § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) **(Board Review 10, 06, and 13).**

The property vouchers, invoiced by PO Barton, show that two license plates with matching numbers were inventoried as arrest evidence; § 87(2)(b) s and § 87(2)(b) s belongings, vehicle, and contents were inventoried as well **(Board Review 15).** PO Barton explained that the District Attorney's office declined to prosecute § 87(2)(g)

§ 87(2)(g). **(Board Review 09)**

§ 87(2)(g), § 87(2)(a) 160.50

§ 87(2)(g)

§ 87(2)(g). Therefore, it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation C –Abuse of Authority: At the 70th Precinct stationhouse, Police Officer Eric Gutierrez threatened § 87(2)(b) with the use of force.

Allegation D –Discourtesy: At the 70th Precinct stationhouse, Police Officer Eric Gutierrez spoke discourteously to § 87(2)(b)

Allegation E –Offensive Language: At the 70th Precinct stationhouse, Police Officer Eric Gutierrez made remarks to § 87(2)(b) based upon ethnicity.

After being arrested by PO Barton, § 87(2)(b) was brought to the 70th Precinct stationhouse and was lodged in the holding cells. Approximately thirty minutes later, PO Gutierrez came into the holding cells and recognized § 87(2)(b) from a previous interaction in which PO Gutierrez used force against § 87(2)(b). § 87(2)(b) § 87(2)(b) PO Gutierrez was with another officer and stated, "That's the kid that I knocked out, he's fucking Jewish," and, "You know I hate Jews." PO Gutierrez also stated that § 87(2)(b) is a "Jew who thinks he is black." PO Gutierrez stated to § 87(2)(b) "We can do it again if you want," referring to him previously using force on § 87(2)(b) **(Board Review 7)**

§ 87(2)(b) did not provide any details as to any interaction between § 87(2)(b) and PO Gutierrez, and was ultimately uncooperative with the investigation. **(Board Review 9)**

The investigation identified § 87(2)(b) as a potential witness who was in the holding cells of the 70th Precinct stationhouse; § 87(2)(b)

§ 87(2)(b). He did not respond to contact attempts. **(Board Review 12)**

PO Gutierrez stated that he was at the 70th Precinct stationhouse because his partner, PO Simmons, made an arrest. PO Gutierrez recognized § 87(2)(b) who was in the holding cells. However, PO Gutierrez did not enter the holding cells as he wanted to avoid confrontation. PO Gutierrez did not say, or hear any other officers say, "That's the kid that I knocked out, he's fucking Jewish." PO Gutierrez did not say, or hear any other officers say that § 87(2)(b) is a "Jew who thinks he's black." PO Gutierrez did not say, or hear any other officers say, "We can do it again" in reference to § 87(2)(b) being knocked out by PO Gutierrez. PO Gutierrez did not say, or hear any other officers say that he does not like Jews. PO Gutierrez denied any conversation with § 87(2)(b) **(Board Review 11)**

PO Barton did not see PO Gutierrez while processing § 87(2)(b) s arrest. PO Barton did not observe any interaction between PO Gutierrez and § 87(2)(b) **(Board Review 9)**

It is therefore recommended that **Allegations C, D, and E** be closed as **unsubstantiated**.

Squad: 12

Investigator:	_____	<u>Thomas Juliano</u>	<u>February 15, 2017</u>
	Signature	Print	Date

Squad Leader:	_____	<u>SI Lily Carayannis</u>	<u>February 15, 2017</u>
	Signature	Title/Print	Date